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TAB 9



Board of Education Report

File #: Rep-200-24/25, Version: 1
In Control: Facilities

Agenda Date: 2/11/2025

Consideration of Street Lighting Maintenance Assessment for the 112th Street & Compton Avenue Lighting District Facilities Services Division

Brief Description:

(Consideration of Street Lighting Maintenance Assessment for the 112th Street & Compton Avenue Lighting District) Recommends authorization of the Chief Facilities Executive and/or her designee to cast the Proposition 218 ballot for street lighting maintenance assessment for the 112th Street & Compton Avenue Lighting District (Lighting District) within the City of Los Angeles (City) and execute any other reasonable instruments on behalf of Los Angeles Unified in an amount not to exceed \$10,673.52 annually (not including annual Consumer Price Index (CPI) increases).

Action Proposed:

Authorize the Chief Facilities Executive and/or her designee to cast the Proposition 218 ballot for street lighting maintenance assessment for the Lighting District within the City and execute any other reasonable instruments on behalf of Los Angeles Unified in an amount not to exceed \$10,673.52 annually (not including annual CPI increases). Should the Board of Education (Board) approve this proposal, Staff will cast the ballot in support (Yes); if the proposal is not approved, the ballot will be cast against (No).

Background:

The street lighting maintenance assessment for the Lighting District is seeking support of a ballot to add 37 new streetlights along Compton Avenue, East 111th Street, East 112th Street, and Maie Avenue in Los Angeles. All 37 streetlights would be installed along the perimeter of Lovelia P. Flournoy Elementary School (School), as identified in Exhibit A. The Lighting District will need to submit ballots to property owners to vote on the assessment and to install the additional streetlights. The Lighting District provides servicing, installation, maintenance, and operation of street lighting. The cost for services includes but is not limited to electricity, lamps, fixtures, poles, wires, repair crews and vehicles and other items necessary to operate streetlights in the City. The additional lighting will further enhance safety measures and support safety passages.

Los Angeles Unified currently pays \$676.07 annually for 11 existing streetlights in this area. If approved and implemented, the annual amount for the special assessment projected by the Lighting District for the School would increase to \$10,673.52 annually. This adjustment reflects several key factors: the existing assessment amounts have not been updated for inflation since 1997 due to Prop 218, which froze rates for over 25 years, and the methodology has changed from calculating rates based on property frontage to acreage, resulting in larger parcels incurring higher assessments. Additionally, the inclusion of street lighting, which requires more poles with closer spacing, adds a significant layer of maintenance costs, further contributing to the adjusted rates. The proposed assessment is subject to annual increases based on the Lighting District budget.

The Lighting District is located in Region South, Board District 7 (Tanya Ortiz Franklin).

Expected Outcomes:

Approval of the action will authorize Staff to execute the ballot in support of the proposed lighting assessment provided by the Lighting District and pay the annual assessment for the Lighting District. The increased lighting will help further enhance safe passages to and from school for students attending the School.

Board Options and Consequences:

A “yes” vote by the Board will authorize Staff to record a yes vote on the Proposition 218 ballot for the Lighting District.

A “no” vote by the Board will authorize Staff to record a no vote on the Proposition 218 ballot for the Lighting District. This may result in the Lighting District failing to obtain a majority affirmative vote of the property owners in the Lighting District. However, if the Lighting District does secure the required support, Los Angeles Unified would still be obligated to pay the cost associated with the special assessments.

Policy Implications:

The proposed action advances Los Angeles Unified’s 2022-2026 Strategic Plan Pillar 3 Engagement and Collaboration Leading for Impact by growing and leveraging partnerships with community-based organizations. Moreover, it supports the District’s Every School Safe: A Blueprint for Safety.

Budget Impact:

The projected annual amount for the assessment of 112th Street & Compton Avenue Lighting District in 2025 would be increased from \$676.07 to \$10,673.52 and subject to increases based on the 112th Street & Compton Avenue Lighting District budget annually thereafter. Annual assessment for the 112th Street & Compton Avenue Lighting District will be provided by the General Fund, Program Code 15190. This is a new cost, and additional funding will be necessary to support the assessment. The assessment is an ongoing annual cost and does not have a sunset date.

Student Impact:

Improve safety measures and support safe passages around the school perimeter and surrounding neighborhood.

Equity Impact:

A lighting district is a geographically defined area within the City, in which services, maintenance, and operations are paid for through a special assessment, which is charged to all members within the district in order to equitably distribute the benefits received and the costs incurred to provide the agreed-upon services, activities, and operations.

Issues and Analysis:

Article 13 D (Proposition 218) of the State Constitution requires that a parcel’s assessment may not exceed the reasonable cost for the proportional special benefit conferred on that parcel. Article 13 D provides that only special benefits are assessable, and the City must separate the general benefits from the special benefits. It also requires that publicly owned properties, which benefit from the improvements, be assessed.

Los Angeles Unified is not obligated to support the formation of the 112th Street & Compton Avenue Lighting District. Regardless of Los Angeles Unified’s support, if the 112th Street & Compton Avenue Lighting District is approved, Los Angeles Unified will be required to pay its special assessment unless there has been a formal determination that it is exempt.

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The City has limited funding to provide certain services, and the 112th Street & Compton Avenue Lighting District is able to supplement services that may benefit the community. Supporting the 112th Street & Compton Avenue Lighting District is voluntary by the Board, however Los Angeles Unified is obligated to pay the special assessment should the City Council vote to pass the 112th Street & Compton Avenue Lighting District ballot presented.

Attachments:

Exhibit A - Area Map

Exhibit B - Aerial Map

Submitted:

01/14/25

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RESPECTFULLY SUBMITTED,



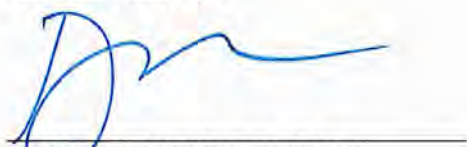
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 Deputy Superintendent,
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REVIEWED BY:



DEVORA NAVERA REED
 General Counsel

☒ Approved as to form.

APPROVED BY:



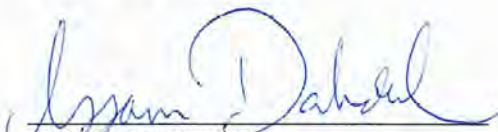
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 Deputy Chief Business Officer, Finance

PRESENTED BY:



ISSAM DAHDUL
 Director of Facilities
 Planning and Development
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☒ Approved as to budget impact statement.

Exhibit B

Aerial Map

